



CHAPTER cxx.

An Act to provide an additional supply of water to the burgh of Falkirk and districts and places adjacent and for the construction and maintenance of new and additional works to extend the limits of compulsory supply to confer further powers on the Falkirk and Larbert Water Trustees and for other purposes.

A.D. 1900.

[30th July 1900.]

WHEREAS by the Falkirk and District Water Act 1888 (in this Act referred to as "the Act of 1888") the Falkirk and Larbert Water Trustees (in this Act called "the Trustees") were incorporated for the purpose of supplying water to the burgh of Falkirk and districts and places adjacent and the powers of the Trustees were therein defined and regulated:

And whereas by the Falkirk and District Water (Additional Supply) Act 1896 (in this Act called "the Act of 1896") further powers were conferred on the Trustees to enable them to increase their water supply and for that purpose to impound additional water in their existing reservoirs but except to a limited extent it was found inexpedient to exercise the powers conferred by that Act for the execution of works:

And whereas the works authorised by that Act and executed by the Trustees were Works Nos. 5 and 8 and (in part) 11 therein described and the same now form part of the water undertaking of the Trustees:

And whereas it is expedient that the Trustees should abandon the works authorised by that Act except so far as constructed as aforesaid:

And whereas for the execution of the works so far as constructed as aforesaid it was unnecessary to acquire any lands or to take additional water under the said Act and none were acquired or taken:

A.D. 1900.

And whereas the time limited for the compulsory purchase of lands has expired :

And whereas in consequence of the non-exercise of the powers conferred on the Trustees by the Act of 1896 to take additional lands and water as therein mentioned the compensation water thereby provided to be given has become inoperative and the provisions with respect to such compensation water should be repealed :

And whereas the existing waterworks and water supply are inadequate and insufficient and it would be for the public advantage that the Trustees should be authorised to provide an increased supply of water to the burgh of Falkirk and districts and places adjacent and for that purpose to acquire the lands and construct and maintain the several waterworks in this Act mentioned :

And whereas the boundaries of the burgh of Falkirk were extended by the Falkirk Corporation Act 1890 :

And whereas by the Act of 1896 the limits of compulsory supply were extended so as to include therein the burgh as extended by the said Falkirk Corporation Act 1890 :

And whereas it is expedient that the existing limits of compulsory supply should be further extended as herein-after mentioned :

And whereas it is expedient that the Trustees should be authorised to levy rates and to raise further money for the purposes of the works authorised by this Act and for the purchase of lands and for the general purposes of their undertaking :

And whereas it is expedient that the other powers in this Act mentioned should be conferred on the Trustees :

And whereas plans and sections showing the lines situations and levels of the several works authorised by this Act and also a book of reference thereto containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of the lands and other property required or which may be taken for the several purposes or under the powers of this Act were duly deposited in the offices at Stirling and Falkirk respectively of the principal sheriff clerk of the county of Stirling and are in this Act referred to as the deposited plans sections and book of reference :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the A.D. 1900.
authority of the same as follows (that is to say) :—

1. This Act may be cited for all purposes as the Falkirk and District Waterworks Act 1900. Short title.

2. In this Act and for the purposes of the Act of 1888 the Act of 1896 and this Act the several words and expressions to which meanings are assigned in the Act of 1888 and in the Act of 1896 and in any Acts wholly or partially incorporated therewith shall subject to the provisions of this Act have the meanings attached to them in those Acts unless there be something in the subject or context repugnant to such construction and subject to the variations and amendments following (that is to say) :— Interpretation.

The expression “the burgh of Falkirk” means and includes the burgh of Falkirk according to the municipal and police boundaries thereof at the passing of this Act and any extension of such boundaries which may be made by any Act passed in the present Session of Parliament ;

The expression “the undertaking” includes in addition to all the other waterworks and property vested in and belonging to the Trustees under the Act of 1888 and the Act of 1896 the waterworks authorised by this Act and all lands property and buildings and all streams springs wells reservoirs cisterns tanks aqueducts sluices mains pipes culverts and all machinery material plant or things for supplying water or used in or connected with the supply of water under the authority of this Act and all the rights powers authorities and privileges vested in the Trustees ;

The expression “the waterworks” means the waterworks of the Trustees including the works authorised by this Act ;

The expression “drainage area” means lands off and from which water flows directly or indirectly into the Trustees’ reservoirs and works respectively ;

The expression “limits of compulsory supply” means the limits for the compulsory supply of water by the Trustees as defined in the Act of 1888 and extended by the Act of 1896 and as further extended by this Act ;

The expression “the limits of the Act” means the limits described in the Act of 1888 as the limits of that Act.

3. This Act and the Act of 1888 and the Act of 1896 may be cited as the Falkirk and District Water Acts 1888 to 1900. Acts to be construed as one Act.

4. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent Incorporation of Acts.

A.D. 1900. with or varied by the provisions of this Act) are hereby incorporated with this Act:—

The Lands Clauses Acts:

The Waterworks Clauses Acts 1847 and 1863 with the exceptions specified in the Act of 1888:

The clauses and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith but such clauses and provisions shall apply only in the case of the reservoirs embankments and other works immediately connected therewith and the expressions "the Company" means the Trustees "the railway" means the said works authorised by this Act and "the centre of the railway" means any part of those works:

The Commissioners Clauses Act 1847 with the exceptions specified in the Act of 1888.

Power to
execute
works and
take lands.

5. Subject to the provisions of this Act the Trustees may make construct lay down and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the several waterworks and other works shown on the deposited plans and herein-after described or some of them or some part or parts thereof together with all proper embankments reservoirs weirs intakes bridges roads approaches ways tramways wells tanks basins gauges waste weir channels filter beds stand pipes adits shafts tunnels aqueducts cuts channels catch-waters bye-washes conduits sewers drains mains pipes junctions valves engines apparatus and conveniences connected with the said works or any of them or necessary for conducting inspecting maintaining repairing cleansing managing and using the same and may enter upon purchase take hold appropriate and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for those purposes Provided that the Trustees shall not acquire the property numbered 156 in the parish of Denny on the deposited plans and described in the deposited book of reference The works herein-before referred to are the following (that is to say):—

- (1) A reservoir (Work No. 1) on the line of the stream known as Earls Burn wholly situate in the parish of St. Ninians and county of Stirling commencing at a point on the said stream seven hundred and thirty yards or thereby measured in a south-easterly direction from the point where it is crossed by the centre line of the embankment of the existing Earls Burn

Reservoir belonging to the Trustees and terminating by an embankment to be formed across said Earls Burn at a point seven hundred yards or thereby measured in a south-south-easterly direction from the said point of commencement and which embankment will commence at a point one hundred and forty-nine yards or thereby in a south-westerly direction and will terminate at a point one hundred and one yards or thereby in a north-easterly direction both measured from the centre of said Earls Burn where that burn will be crossed by such embankment:

A.D. 1900.

- (2) A road of access (Work No. 2) to the said reservoir wholly situate in the parish of St. Ninians and county of Stirling commencing on the road of access to the existing Earls Burn Reservoir belonging to the Trustees at a point one thousand three hundred and fifty yards or thereby measured in a south-south-easterly direction from the south-western end of the embankment of said existing reservoir and terminating at a point one hundred and twenty-eight yards or thereby measured in a north-easterly direction from the said point of commencement:
- (3) A diversion (Work No. 3) of the road of access to the existing Earls Burn Reservoir belonging to the Trustees wholly situate in the parish of St. Ninians and county of Stirling commencing at a point on said road six hundred and ten yards or thereby measured in a south-south-easterly direction from the south-western end of the embankment of said existing reservoir and terminating at a point six hundred and fifty yards or thereby measured in a south-south-easterly direction from the said point of commencement:
- (4) A catch-water drain or channel (Work No. 4) wholly situate in the parish of Kilsyth and county of Stirling commencing at a point on the line of the stream known as March Burn six hundred and seventy yards or thereby measured in a southerly direction from the centre of the river Carron at the point where it is joined by the said March Burn and terminating in the Faughlin Reservoir belonging to the Trustees at a point forty yards or thereby measured in a south-south-westerly direction from the centre of the waste weir of said reservoir:
- (5) A conduit or line of pipes (Work No. 5) wholly situate in the parish of Denny and county of Stirling commencing on the line of the outlet pipe from Faughlin Reservoir belonging to the Trustees at a point fifty yards or thereby measured northward from the Upstand or Valve Tower in said reservoir and

A.D. 1900.

terminating in the reservoir next herein-after described at a point one hundred and seven yards or thereby measured in a south-easterly direction from the south-east corner of Drumbowie Farm Steading:

(6) A reservoir (Work No. 6) wholly situate in the parish of Denny and county of Stirling on the line of the stream known as Little Denny Burn commencing at a point on said stream eight hundred and forty-two yards or thereby measured in a west south-westerly direction from the south-east corner of Drumbowie Farm Steading and terminating by an embankment to be formed across the said Little Denny Burn at a point nine hundred and ninety-four yards or thereby measured in an easterly direction from the said point of commencement and which embankment will commence at a point three hundred and twenty-six yards or thereby in a south-westerly direction and will terminate at a point one hundred and fifteen yards or thereby in a north-westerly direction both measured from the centre of the said Little Denny Burn where it will be crossed by such embankment:

(7) A bye-pass channel or pipe (Work No. 7) wholly situate in the parish of Denny and county of Stirling commencing at a point in the centre of the stream known as Little Denny Burn at a point eight hundred and ninety-five yards or thereby in a west south-westerly direction and terminating at a point three hundred and ten yards or thereby in an east-south-easterly direction both measured from the south-east corner of Drumbowie Farm Steading:

(8) A diversion (Work No. 8) of the public roads numbered 971 981 and 1213 on the revised ordnance survey map of the parish of Denny wholly situate in the parish of Denny and county of Stirling commencing in the centre of the road numbered 971 on the said map at a point nine hundred and fifteen yards or thereby in a west-south-westerly direction and terminating in the road numbered 1213 on the said map at a point four hundred and twenty-six yards or thereby in a south-easterly direction both measured from the south-east corner of Drumbowie Farm Steading:

(9) A conduit or line of pipes (Work No. 9) wholly situate in the parish of Denny and county of Stirling commencing in the intended reservoir Work No. 6 herein-before described at a point one hundred and ninety-eight yards or thereby measured in a south-easterly direction from the south-east corner of Drumbowie Farm Steading and terminating at a point one

hundred and twenty-five yards or thereby measured in a south-westerly direction from the north-east corner of Little Denny Farm Steading: A.D. 1900.

(10) A filter or filters and a clear water tank or tanks (Work No. 10) wholly situate in the parish of Denny and county of Stirling in the fields and enclosures numbered 544 549 550 and 588 on the revised ordnance survey map of the parish of Denny or in one or more of them:

(11) A filter or filters and a clear water tank or tanks (Work No. 11) wholly situate in the parish of Denny and county of Stirling in the enclosure numbered 538 on the revised ordnance survey map of the parish of Denny:

(12) A road of access (Work No. 12) wholly situate in the parish of Denny and county of Stirling commencing in the centre of the existing road numbered 548 on the revised ordnance survey map of the parish of Denny at a point one hundred and ninety-five yards or thereby measured in a southerly direction from the south-east corner of Blaefaulds Farm Steading and terminating at a point one hundred and sixty-five yards or thereby measured in a south-westerly direction from the north-east corner of Little Denny Farm Steading:

(13) A conduit or line of pipes (Work No. 13) commencing at a point one hundred and twenty-five yards or thereby measured in a south-westerly direction from the north-east corner of Little Denny Farm Steading and terminating in the burgh of Falkirk at the point where the centre line of High Street is intersected by the centre line of Hope Street which conduit or line of pipes will be situate in and will pass from in through or into the parishes of Denny, Dunipace and Falkirk the burgh of Denny and Dunipace and the burgh of Falkirk or some or one of them.

6. The Trustees may in constructing the works by this Act authorised deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and when the line of any work is shown on those plans as passing along any road and no limits of lateral deviation are marked on the deposited plans the Trustees may in making such work deviate laterally to any extent within the boundaries of such road Provided that the Trustees may in the construction of any of the said works deviate laterally to any extent beyond any limits of lateral deviation shown on the deposited plans with the consent of the owners and occupiers of any lands beyond such limits The Trustees may also deviate from the levels of all or any of the

Power to
deviate
laterally and
vertically.

A.D. 1900. works authorised by this Act as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that the Trustees shall in the construction of the said Earls Burn Reservoir Work No. 1 before described raise the top water level of the said reservoir and also the level of the top of the embankment of the said reservoir two feet six inches above the respective levels shown on the deposited sections of the said reservoir and shall construct the level of the waste weir at the top water level aforesaid Provided always that the centre line of the embankment of the said reservoir Work No. 1 shall not in any event be placed higher up the Earls Burn than the position of the said centre line as shown on the deposited plans and sections Provided also that in the exercise of such powers of vertical deviation the Trustees shall not except in crossing bridges or culverts lay above ground any pipe which is shown on the deposited plans to be underground or lay any pipe at a greater height above ground than is shown on the deposited sections Provided further that if the Trustees shall in the case of the embankments exercise the powers of vertical deviation hereby granted they shall construct the embankments of such additional thickness at the base as shall be equal to five feet for every additional foot of additional height and shall make a corresponding addition to the strength of any retaining wall Provided further that the Trustees shall not construct any embankment of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition.

Confirmation
of agreement
between the
Trustees and
mineral owners
and lessees.

7. The agreement made between the Trustees and John William Burns and A. G. Moore and Company and the individual partners thereof as set forth in the Third Schedule to this Act is hereby confirmed and made binding on the said parties.

Power to
alter roads
&c. tempo-
rarily.

8. For the purposes and during the execution of the several works which the Trustees are by this Act authorised to make and in maintaining the same and subject to the provisions of this Act the Trustees may in any of the lands shown on the deposited plans and specified in the deposited book of reference break up or cross over or under and temporarily alter stop up or divert any streets highways roads lanes paths bridges railways canals passages sewers drains streams watercourses gas pipes and water pipes and electric or telephonic apparatus which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the

traffic on any such street highway or railway or the flow of water gas sewage or electricity in any such sewer drain stream watercourse pipe or apparatus and making full compensation to all persons injuriously affected by anything done under the provisions of this section Provided that nothing in this section shall extend to or authorise any interference with electric apparatus or other property of Her Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1890 to which the provisions of section 15 of the Electric Lighting Act 1882 apply.

A.D. 1900.

9. Sections 37 (For protection of road trustees) 38 (Works affecting Caledonian Railway) 39 (Works affecting Forth and Clyde Navigation) and 40 (Difference between Trustees and Caledonian Railway Company to be settled by arbitration) of the Act of 1888 shall extend and apply to the works authorised by this Act and in the said section 37 the county road trustees shall be read as the county council of the county of Stirling and in the said section 39 and in sub-section (6) thereof the words "the conduit or line of pipes (No. 15)" occurring therein shall for the purposes of this Act be read as "the conduit or line of pipes Work No. 13" before described.

For protection of road trustees and Caledonian Railway Company.

10. So soon as the substituted portion of the public road (Work No. 8) leading from Whitehill to Glenhead situate in the parish of Denny in the county of Stirling and by this Act authorised to be diverted is formed and ready for traffic and certified by the sheriff as in the next following section provided and open to the public the Trustees may stop up and extinguish all rights of way over the portion of the said existing road between the points of the commencement and termination of the said diversion thereof and they may appropriate for the purposes of this Act the site of so much of the said road so stopped up and diverted as may be bounded on both sides by lands of the Trustees.

On completion of diverted portion of road site of existing road so far as superseded to vest in Trustees.

11. Immediately upon the completion of the said substituted portion of road the Trustees shall make an application to the sheriff to certify as to the completion of the same and the county road authority shall be made parties to such application The said diverted portion of road when its completion is so certified (of which completion such certificate shall be conclusive evidence) shall become and the same shall thenceforth be part of the said public road and shall subject to the proviso herein-after contained be upheld and maintained by the county road authority Provided always that

Maintenance of diverted road.

A.D. 1900.

the Trustees shall pay to the county road authority the cost of upholding and maintaining the said diverted portion of said road for a period of twelve months after the date of the said certificate of completion.

Power to
divert and
impound
water.

12. The Trustees may by means of the waterworks herein-before described or some of them collect intercept divert abstract appropriate and take into and impound and store up in the reservoir Work No. 1 herein-before mentioned and in the existing Faughlin Reservoir of the Trustees and in the reservoir Work No. 6 herein-before mentioned and may subject to the provisions of this Act use and distribute for the water supply of the Trustees to the burgh of Falkirk and districts and places adjacent and for the purposes of the Act of 1888 the Act of 1896 and this Act the waters of the streams known as March Burn Slachristock Burn and Earls Burn and all streams brooks springs and waters flowing into or arising within the said streams or intercepted by the Works No. 1 No. 4 and No. 6 herein-before mentioned or any of them or flowing into or within the site of the said reservoirs and may for the purpose of providing compensation water take use and appropriate the waters of the stream known as Earls Burn flowing into the existing reservoir of the Trustees known as Earls Burn Reservoir and all waters and streams running or draining into or within the site of the said reservoir Work No. 1 authorised by this Act.

Abandon-
ment of cer-
tain works.

13. The Trustees shall abandon the construction of the works authorised by and described in section 5 of the Act of 1896 except as regards Works No. 5 and No. 8 therein described which have been already constructed and completed and No. 11 so far as already constructed and completed.

For protec-
tion of mill-
owners &c.

14. Sections 12 13 and 14 of the Act of 1896 are hereby repealed and in lieu thereof the following provisions shall in addition to the provision contained in section 6 of this Act for raising the levels of the reservoir Work No. 1 therein mentioned have effect (that is to say):—

(1) For the protection of all mill-owners and other persons interested in the waters intercepted abstracted and appropriated under the powers and for the purposes of this Act and in the waters intercepted abstracted and appropriated under the powers and for the purposes of the Act of 1888 the Trustees shall on and after the completion of Work No. 1 and Work No. 4 authorised by this Act from and out of the existing Earls Burn Reservoir of the Trustees and the reservoir Work No. 1 hereby authorised (or as herein-after provided out of the

A.D. 1900.

Faughlin Reservoir) and during every day of twenty-four hours in every year permit to flow or shall deliver into Earls Burn from the said reservoir Work No. 1 (or as after provided into the Faughlin Burn) in addition to the eight hundred and twenty-eight thousand gallons of water which the Trustees are presently bound to discharge from the existing Earls Burn Reservoir under the provisions of the Act of 1888 a further quantity of not less than nine hundred and seventy-two thousand gallons of water amounting together to one million eight hundred thousand gallons :

(2) The provisions of section 44 of the Act of 1888 shall so far as capable of being applied and not altered by this Act apply to such increased quantity of compensation water in the same way and to the same effect as the provisions of the said section apply to the quantity of compensation water therein prescribed and the said two quantities of water amounting together to one million eight hundred thousand gallons are herein-after called "the compensation water" :

(3) The said reservoir Work No. 1 shall be constructed with an outlet of such dimensions as shall permit to pass not less than the compensation water when the surface of the water is at a level of twelve feet six inches below the top water line of the reservoir as shown on the deposited plans and sections and if and while and so often as the surface of the water in the said reservoir Work No. 1 is not higher than a point twelve feet six inches below the said top water line the Trustees shall cease to discharge the compensation water therefrom and shall instead thereof and before causing such discharge from the said reservoir to cease commence to deliver the compensation water into the Faughlin Burn from the Faughlin Reservoir Provided that the Trustees shall construct and maintain a second outlet in the said reservoir Work No. 1 of like dimensions at a depth of seven feet below the said top water line for the discharge of the compensation water :

(4) Except in cases of emergency the Trustees shall before opening any outlet which may be constructed by the Trustees for the purpose of emptying the reservoir Work No. 1 for cleansing or repair give at least forty-eight hours' notice to the occupants for the time being of the Carrongrove Paperworks and the Stoneywood Paperworks of the time at which the Trustees shall open the said outlet for the purposes of cleansing or repairing the reservoir :

A.D. 1900.

- (5) The Trustees shall continue so to discharge the compensation water from the Faughlin Reservoir until the surface of the water in the said reservoir Work No. 1 rises to a point twelve feet below the said top water line when they may resume the discharge of the compensation water from the reservoir Work No. 1 and thereafter cease the discharge of the compensation water from the Faughlin Reservoir :
- (6) The Trustees shall construct and for ever thereafter maintain at the said reservoir Work No. 1 and at the Faughlin Reservoir suitable measuring-gauges over or through which the compensation water if and while and so often as discharged therefrom shall flow or be delivered :
- (7) The said gauges and works connected therewith shall be open to the inspection and examination of and made convenient of access for the mill-owners or other persons interested as aforesaid or any one or more of them respectively or of any persons or person deputed by them or any of them :
- (8) If at any time the said reservoir Work No. 1 or the Faughlin Reservoir or such gauges and works be out of repair or in an unfit condition for the supply of the compensation water the Trustees shall forthwith put the same into fit repair and condition and if they fail to do so within seven days after notice in writing to that effect given to them or any proper official on their behalf by or on behalf of the mill-owners or any one or more of them then any such mill-owners or mill-owner may cause the same to be put in fit repair and condition for the supply of the compensation water and may recover the reasonable cost of so doing with full costs of suit in any court of competent jurisdiction :
- (9) The flow or delivery of the compensation water shall be in a continuous and uniform stream :
- (10) The Trustees shall not divert any of the waters which by the said Work No. 4 they are authorised to divert nor shall they interfere with the continuous natural flow thereof or of the Earls Burn at any point lower down the stream than the existing Earls Burn Reservoir (except for the purpose of filling the reservoir Work No. 1) until they have made provision in terms of this Act for the delivery of the compensation water :
- (11) The Trustees shall forthwith place and for ever after maintain in proper position within the existing Earls Burn Reservoir and close to the outlets therefrom by which it discharges into the Earls Burn and also within the reservoir Work No. 1 before described and close to the outlet therefrom

A.D. 1900.

by which the compensation water is to be discharged suitable gauge rods marked in feet and inches which shall indicate respectively the level of the top water line of the existing Earls Burn Reservoir and the level of the top water line of reservoir Work No. 1 and the Trustees shall weekly transmit to the occupants for the time being of the Carrongrove Paperworks and of the Stoneywood Paperworks in whose hands the same shall be open to the inspection of the other mill-owners and other persons interested a record of the height for the time being of the water in the existing Earls Burn Reservoir and in the reservoir Work No. 1 before described :

(12) It is hereby expressly provided and declared that the said quantity of nine hundred and seventy-two thousand gallons has been adjusted on the basis of the additional drainage area the water of which is to be intercepted and appropriated by the said reservoir Work No. 1 and the Catchwater Drain or Channel Work No. 4 being limited to the areas draining to the reservoir Work No. 1 and to the Catchwater Drain or Channel Work No. 4 and the Trustees shall so construct the said Works Nos. 1 and 4 as to include no larger drainage area :

(13) The outlets referred to in sub-section (3) hereof shall be made and the limits of the works referred to in sub-section (12) hereof shall be fixed at the sight and to the satisfaction of an engineer to be nominated as arbiter (unless otherwise agreed on between the parties in difference) on the application of either party after seven days' notice in writing to the other of them by the sheriff principal of the county of Stirling for the time being and the expenses incurred to the said arbiter shall be paid by the Trustees :

(14) If any difference arise between the Trustees and the mill-owners or any one or more of them with respect to any of the matters in this section contained (other than those referred to in the immediately preceding sub-section) such difference shall be settled and determined by an engineer to be nominated as arbiter (unless otherwise agreed between the parties in difference) on the application of either party after seven days' notice in writing to the other party by the said sheriff and the costs of and incident to the reference shall be borne as the arbiter shall direct.

15. The compensation water discharged under the provisions of this Act if and while discharged shall subject to the provisions of the Act of 1888 be and be deemed to be full compensation to all

Compensation.

A.D. 1900.

mill-owners and other persons interested in the waters intercepted abstracted and appropriated under the powers and for the purposes of the Act of 1888 and this Act.

Power to
agree for
servitudes
&c.

16. The Trustees may subject to the provisions of this Act take by agreement and any person by the Lands Clauses Acts or otherwise enabled to sell lands may grant to them any servitude interest right or privilege (not being a servitude of water in which other persons than the parties to the agreement have an interest) in over affecting or belonging to lands at a price or yearly rent feu duty or otherwise but in the case of a person not enabled otherwise than by the said Acts to sell lands then subject and according to the provisions relative to the taking of lands by agreement contained in the said Acts and for the purposes of this section any such servitude interest right or privilege shall be deemed to be lands within the meaning of those Acts.

Limiting time
for exercise
of compulsory
powers of
purchase.

17. The powers of the Trustees for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for
completion
of works.

18. If the works authorised by this Act are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Trustees for executing any works not so completed shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Trustees from maintaining using extending enlarging altering replacing relaying increasing adding to or removing any of their filters filter-beds tanks conduits aqueducts mains or pipes at any time and from time to time as occasion requires for the purpose of supplying water within the limits within which the Trustees may supply water.

Restriction
on taking
houses of
labouring
class.

19. The Trustees shall not under the powers of this Act purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Trustees acquire or appropriate any house or houses under the powers by this Act granted in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable

by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

A.D. 1900.

For the purposes of this section the expression "labouring class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them and "house" means any house or part of a house occupied as a separate dwelling.

20. The Trustees may subject to the provisions of this Act and notwithstanding the expiration of the period limited for completion of works lay down maintain use extend alter renew relay replace enlarge and increase the number and size of the mains pipes filters filter-beds tanks channels and other works and conveniences from time to time in use or required for filtering storing and conveying and distributing water for the purposes of their undertaking. Provided always that such extension enlargement or increase shall be executed only on lands or property belonging to the Trustees or which may be acquired by them by agreement or which they are by the Waterworks Clauses Acts 1847 and 1863 entitled to open and break up for such purposes.

Trustees
may enlarge
or increase
number of
pipes.

21. The Trustees may at any time for the purposes of conveying water from any of the sources of their water supply whether existing or authorised or for distributing and supplying water within the limits districts or areas or any part of the same within which the Trustees are authorised to supply sell or distribute water either in bulk or otherwise and that whether within the limits of the Act or beyond the same and so far as beyond such limits with the consent of the road authority lay down make and maintain and use aqueducts conduits or lines of pipe through over under along across or into any public road or highway and renew alter enlarge duplicate and increase the number and size thereof or extend the same and stop up temporarily any such public road or highway for such purposes providing when possible a proper temporary substitute to the reasonable satisfaction of the road authority before interrupting the traffic on any such road and making full compensation to all persons injuriously affected by anything done under the provisions of this section.

Laying
mains on
public roads.

A.D. 1900.

Confirmation of
agreement
between
Trustees and
County Council
of Stirling and
Eastern District
Committee.

22. The agreement as set forth in the Second Schedule to this Act made between the Trustees and the county council of the county of Stirling and the Eastern District Committee of the said county council is hereby confirmed and made binding on the parties thereto.

Pressure.

23. The water to be supplied from any main or pipe of the Trustees need not be supplied in any case at a level above or at a greater pressure than can be supplied or afforded by gravitation from the service reservoirs or tanks from which the supply is taken.

Extension
of limits of
compulsory
supply.

24. Subject to the provisions of this Act the limits of compulsory supply specified in the Act of 1888 and as extended by the Act of 1896 shall in addition to such limits comprise and include the several areas set forth in the First Schedule to this Act and the powers and provisions of the Act of 1888 as amended and varied by the Act of 1896 and by this Act shall apply to the extended limits of compulsory supply as fully and effectually as such powers and provisions apply to the limits of compulsory supply defined in the Act of 1888 and the Act of 1896. Provided that in any extension of the burgh of Falkirk under the provisions of the Burgh Police (Scotland) Act 1892 the sheriff may if he thinks fit extend the limits of compulsory supply to such extended boundary.

Estimates
&c. by
Trustees to
include
purposes of
this Act.

25. The estimate required to be made and the rates rents and charges authorised and required to be levied by the Trustees under and for the purposes of the Act of 1888 and the Act of 1896 as amended and extended by this Act shall be made levied and charged so that the same shall not only include and be sufficient with the other rates and revenue of the Trustees for the purpose of defraying the annual sums or expenditure specified in the Act of 1888 and the Act of 1896 but also the interest of any money which may be borrowed or raised under the provisions of this Act and the payments to the sinking fund or other instalments and the expense of maintaining and managing the additional works authorised by this Act and all other annual expenditure arising out of the exercise of the powers by this Act conferred or consequent on the construction maintenance and use of the works so authorised.

As to
borrowing
powers in
Act of 1888.

26. The powers to borrow and raise money contained in the Act of 1888 and in the Act of 1896 and to grant security as provided by the next following section for such borrowed money shall and may be exercised by the Trustees for the purposes of this Act as well as for the purposes of the Act of 1888 and of the Act of 1896 and the money so to be borrowed may be applied for such

purposes so far as the same are purposes to which capital is properly applicable. A.D. 1900.

27. In addition to any money which the Trustees have borrowed or raised or are authorised to borrow or raise under the Act of 1888 and the Act of 1896 the Trustees may from time to time under the authority of this Act borrow or raise such further sum as they think requisite for the purposes of the Act of 1888 the Act of 1896 and this Act and for the purchase of lands and the construction of the works authorised by this Act and for the other purposes of this Act and of the undertaking not exceeding ninety thousand pounds and may make and grant mortgages or create and issue stock on the security of the several rates rents and charges leviable by the Trustees under the provisions of the Act of 1888 the Act of 1896 and this Act and of the other revenues of the Trustees, and if after having borrowed or raised the said sums or any part thereof the Trustees pay off the same except by means of the sinking fund or by way of repayment by annuity or instalment it shall be lawful for them again to borrow or raise the amount so paid off and so from time to time and any sums so to be borrowed may be borrowed on terms of the repayment thereof by annuity instalment or by means of a sinking fund And all the provisions as to security reborrowing borrowing on cash account and application for judicial factor contained in the Act of 1888 with reference to the sums therein authorised to be borrowed shall subject to the provisions of this Act apply to the additional sums to be borrowed under this Act.

Power to
borrow
additional
money.

28. The Trustees may and in the event of their borrowing otherwise than on terms of repayment by annuity or instalment shall in each year after the expiration of two years from the fifteenth day of May One thousand nine hundred set apart as a sinking fund from and out of the rates rents and charges and other moneys received by them from or on account of the undertaking (other than money borrowed and other moneys in the nature of capital) such a sum as will by accumulation with compound interest thereon at the rate of three per centum per annum be sufficient to pay off the whole of the moneys that may be borrowed by the Trustees under the powers and for the purposes of this Act within sixty years from the time of borrowing such moneys respectively except as regards the costs of obtaining this Act which shall be repaid within five years Provided always that in the event of such repayment being made by way of annuity or instalment the annual amount of such annuity or instalment shall be sufficient to pay off as

Sinking
fund.

A.D. 1900. aforesaid the whole of such money so borrowed within the foresaid period of sixty years.

Annual
return to
Secretary
for Scotland
with respect
to sinking
fund.

29. The treasurer shall within two months after the expiration of each year during which any sum is by this Act required to be set apart for a sinking fund transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the Trustees have failed to set apart the sum required by this Act to be set apart for the sinking fund or have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Act the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by decree of either Division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

Application
of borrowed
money.

30. The several sums to be borrowed by the Trustees on mortgage or otherwise under the authority of this Act shall be applied for the purposes of the Act of 1888 the Act of 1896 and this Act only to which capital is properly applicable.

Saving
existing
annuities and
securities.

31. Nothing in this Act contained shall prejudice or affect any mortgages or assignments or other writs granted in security for money borrowed (whether repayable by instalments or otherwise) by the Trustees under the Act of 1888 or the Act of 1896 and subsisting at the passing of this Act and the same shall during the continuance thereof be as valid and effectual in all respects as if this Act had not been passed. Provided always that all securities granted by the Trustees for money borrowed or raised after the passing of this Act shall rank together *pari passu* without preference or priority the one over the other. And all mortgages granted

by the Trustees after the passing of this Act shall contain an A.D. 1900.
endorsement to that effect.

32. In borrowing and reborrowing money under the Act of 1888 or the Act of 1896 and in borrowing and reborrowing money under this Act the mortgages and transfers and discharges of the same shall from and after the passing of this Act be in the forms appended to the Act of 1896 as nearly as may be in lieu of the forms appended to the Act of 1888 but it shall not be necessary in any mortgages which may be hereafter granted under the powers of the Trustees to refer to the objects for which the money is borrowed and with respect to money borrowed under and for the purposes of this Act this Act may be referred to in all such mortgages transfers and discharges in lieu of or along with the Act of 1888 and the Act of 1896 as the case may require.

Application
of forms of
mortgage &c.

33. Section 41 of the Act of 1896 is hereby amended as follows (that is to say):—

Amendment
of Act of
1896.

The said section shall be read as if the words “or to charge the
“special rates fixed from time to time by the Trustees and
“approved by the sheriff as herein provided for water supplied
“for the purposes or any of them herein-before mentioned”
were inserted after the word “measure” last occurring in the
said section.

34. All the powers and provisions vested in and applicable to the Trustees with reference to the undertaking by the Act of 1888 as amended by the Act of 1896 and the Act of 1896 as amended by this Act shall be and the same are hereby in so far as applicable extended and applied to the powers and purposes of this Act and to the extended area of compulsory supply and to the works authorised by this Act.

Application
of Act of
1888.

35. All the costs charges and expenses incurred preparatory to and in applying for obtaining and passing this Act or in any way incidental thereto shall be paid by the Trustees out of the rates and charges to be levied by them or other revenue of the Trustees or moneys borrowed or to be borrowed on the security of the same.

Expenses of
Act.

A.D. 1900. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIPTION OF THE AREAS ADDED TO THE LIMITS OF COMPULSORY WATER SUPPLY BY THIS ACT.

1. The area within the parish of Falkirk and county of Stirling bounded as follows Commencing at the point in the boundary between the parishes of Falkirk and Larbert where said boundary is crossed by the eastern fence of the Carron Branch Railway thence running southward along the line of said fence to the road leading to Mungal Cottage thence south-eastward along the centre of said road to the boundary of the burgh of Falkirk thence eastward along said burgh boundary to the point where it crosses the south-eastern fence of the field numbered 2269 on the revised ordnance survey map dated 1897 of the parish thence north-westward to a point in the northern side of the road from Bainsford to Carronbank one hundred and eighty-three yards distant from the western fence of the field numbered 2320 on the revised ordnance survey map aforesaid thence northward along a line parallel with and one hundred yards distant from the western side of the road leading from Longlees to Carronside to the point where said line meets the boundary between the parishes of Falkirk and Larbert and thence westward along the boundary between the parishes of Falkirk and Larbert to the point of commencement first described.

2. The area within the parish of Falkirk and county of Stirling bounded as follows Commencing at a point in the western boundary of the burgh of Falkirk in line with the northern end of the gate lodge at the entrance to Merchistonhall thence running north-westward to the south-east corner of the field numbered 1963 on the said revised ordnance survey map of the parish thence westward along the southern side of said field and the south-eastern side of field numbered 1961 on said map to Cemetery Road on the south-east side of Falkirk Cemetery thence in a south-westerly direction along the north-western side of said road to the fence forming the southern boundary of the Stirlingshire Midland Junction Railway thence westward along said fence to the north-eastern side of the highway from Stirling to Falkirk thence north-westward along the north-eastern side of said highway to the line of the fence separating field numbered 1862 from fields numbered 1863 and 1864 on the map before referred to thence in a south-westerly direction along the line of said fence and the prolongation thereof to the south side of the Stirlingshire Midland Junction Railway thence westward and south-westward along the southern fence of said railway and the south-eastern fence of the Carmuir loop line of the Caledonian Railway to a point one hundred yards southward of the southern side of the highway between Falkirk and Kilsyth thence

A.D. 1900.

eastward along a line parallel with and one hundred yards distant from the southern side of said highway to the western side of the road numbered 1805 on the ordnance map before referred to thence southward to the southern end of said road thence eastward along the northern side of the road numbered 1803 and the fields numbered 1768 1763 and 1761 on said map to the north-eastern corner of the said field numbered 1761 thence southward along the eastern fence of said field to the fence forming the northern boundary of the Forth and Clyde Canal thence westward along said northern boundary of the canal to the south-western corner of the field numbered 1763 on said map thence in a straight line to the western side of the road numbered 1765 on said map thence along the line of the western side of said road to the southern side of the road numbered 1715 on said map thence eastward along the southern side of said road and southward along the western side of the road numbered 1736 on said map to the fence forming the northern boundary of the North British Railway thence eastward in a straight line to the western end of the viaduct carrying said railway over the Union Canal thence along the northern face of said viaduct to the eastern end thereof thence in a straight line to the northern boundary fence of said railway at the south-western corner of the field numbered 1075 on the map before referred to thence eastward along the line of the said boundary fence to the south-western corner of the burgh of Falkirk and thence northward along the western boundary of said burgh to the point of commencement first described.

3. The area within the parish of Falkirk and county of Stirling bounded as follows Commencing at a point in the boundary of the burgh of Falkirk in the centre of the road leading to South Bantaskine in line with the fence on the northern side of the North British Railway thence running eastward along said fence to the western fence of the North British Railway Company's timber yard at Falkirk High Station thence northward and eastward along the fences of the said timber yard to the fence forming the south-east side of the High Station Road thence north-eastward along said fence to the boundary of the burgh of Falkirk and thence westward along said burgh boundary to the point of commencement first described.

A.D. 1900.

THE SECOND SCHEDULE.

AGREEMENT between THE FALKIRK AND LARBERT WATER TRUSTEES incorporated under the Falkirk and District Water Act 1888 (herein-after called "the first parties") on the one part and THE COUNTY COUNCIL OF THE COUNTY OF STIRLING and THE EASTERN DISTRICT COMMITTEE of the said County Council the said District Committee being the local authority under the Public Health (Scotland) Act 1897 of the Eastern District of the County of Stirling formed in pursuance of the Local Government (Scotland) Act 1889 (herein-after called "the second parties") on the other part.

WHEREAS the first parties are under the Falkirk and District Water Act 1888 (herein-after referred to as "the Act of 1888") and the Falkirk and District Water (Additional Supply) Act 1896 authorised to supply water within the districts mentioned in the said Acts beyond the limits of compulsory supply:

And whereas the first parties are now supplying water within certain parts of such districts:

And whereas the first parties are also supplying water to the Bonnybridge (Central) Special Water Supply District and the Bonnybridge (Eastern) Special Water Supply District under agreement between the first parties and the Central and the Eastern District Committees of the said County Council dated the eighth and ninth days of July one thousand eight hundred and ninety-seven for ten years from the fifteenth day of May one thousand eight hundred and ninety-seven:

And whereas the said Eastern District Committee as the local authority under the said Public Health (Scotland) Act 1897 have requested the first parties to supply water within certain other parts of the said districts before referred to and the first parties have agreed so far as they have power under their Acts to comply with the said request but subject to the terms and conditions herein-after mentioned:

Therefore the said parties have agreed and hereby agree as follows (that is to say):—

First.—The main and distributing pipes necessary for conveying the water to be supplied to the districts so far as the same require to be laid in public roads shall (so far as not already laid) be provided and laid by the first parties within such districts as are intended to be supplied under this agreement and shall be the sole property of the first parties and the whole expense of providing and laying the same shall be paid by the first parties and so far as the said main and distributing pipes do not require to be laid in public roads the same shall be provided and laid by and at the sole expense of the second parties. Declaring that the size and dimensions of the whole of such main and distributing pipes as are before referred to and the manner of laying the same or any future extensions thereof shall be in the sole discretion and subject to the

A.D. 1900.

approval of the first parties or their engineer for the time being. The second parties shall pay to the first parties interest at the rate of four per centum per annum on the cost of the pipes supplied and laid down by the first parties as aforesaid from the time of payment of the price thereof until the water is laid on.

Second.—As soon as the main and distributing pipes herein-before referred to are provided and laid as aforesaid the first parties so far as they have power under their said Acts and subject to the provisions therein contained and to the terms of this agreement shall furnish a supply of water from the existing waterworks of the first parties (so far as such supply can be provided by gravitation) to the second parties for the domestic use of the inhabitants within any special water supply district or districts which may be formed within the area or any part thereof delineated and coloured red on a plan signed by the parties in duplicate of even date herewith and as relative hereto and that at a rate which shall be equal to the combined rates from time to time fixed by the first parties under their Acts for the domestic water rate and the public water rate within their compulsory limits of supply together with an additional rate of twopence per pound and which combined and additional rates shall be calculated on the annual value of all dwelling houses offices shops warehouses public buildings manufactories farmsteadings and all other residential or business premises (excluding canals basins of canals towing paths thereof and lines of railway constructed under the authority of Parliament and mines minerals and quarries) and the parts and pertinents of the said respective subjects according to the yearly rent or value of the same and on one-fourth of the yearly rent or value of the other lands and heritages of the same description as the subjects liable in payment of the public water rate under section 73 of the Act of 1888 all as entered in the valuation roll for the year then current applicable to and within any such special water supply district or districts.

Third.—The first parties shall have the exclusive right at any time and without paying any consideration to the second parties to furnish a supply of water by means of the main and distributing pipes or any of them to be laid as aforesaid to any person or persons within the limits of any special water supply district or districts within the area delineated on the plan before mentioned for other than domestic purposes and to any person beyond the limits of such special water supply district or districts but within the area before mentioned for domestic or other purposes and that to such extent at such rates and upon such terms and conditions as may from time to time be fixed by the first parties in accordance with the provisions of their Acts or as may be agreed upon between the first parties and the person or persons obtaining such supplies respectively.

Fourth.—The second parties shall make payment to the first parties at the respective periods and in the manner herein-after specified for the water to be supplied as aforesaid for domestic use within the district such special water rates and charges aforesaid upon the lands and heritages

A.D. 1900.

herein-before described within any such special water supply district or districts. Declaring that the rates to be paid by the second parties to the first parties in respect of the water to be supplied as aforesaid for domestic use within any such district or districts shall be paid whether such supply is used or not. Declaring further that neither the second parties nor any of the consumers of water within any such district or districts shall have any claim against the first parties or be entitled to withhold from the first parties payment of the rates herein-before stipulated for by reason of the want or short supply of water during such times as the first parties may find it necessary to shut the water off for the purpose of the examination or repair of their works or may be prevented from supplying by any action or by frost.

Fifth.—The second parties shall not raise or levy from or upon the first parties in respect of any of their lands and heritages or works including mains and pipes within any special water supply district or districts within which the first parties are by this agreement under obligation to supply water any water rate or assessment which the second parties are authorised under the Public Health (Scotland) Act 1897 or any other Act to raise and levy from and upon the owners and occupiers of lands and heritages and others within such district or districts in respect of the water to be supplied by them thereto.

Sixth.—An account shall be made up and certified and rendered by the treasurer or the collector of the first parties to the second parties in the month of February yearly or as soon thereafter as possible showing the amount payable by the second parties to the first parties in respect of the said water supply within any special water supply district or districts as aforesaid which account shall be paid by the second parties to the first parties within thirty days after the same shall have been certified and rendered to them by the treasurer or collector of the first parties in manner aforesaid.

Seventh.—In the event of the second parties failing to pay within the aforesaid period the rates and charges herein-before specified for the water to be supplied as aforesaid within any such special water supply district or districts or in the event of their failing to fulfil or perform any of the obligations incumbent on them under this agreement the first parties shall be entitled on giving the second parties three months' previous notice in writing of their intention so to do to discontinue the supply of water to any such special water supply district or districts and to terminate this agreement.

Eighth.—The second parties shall relieve the first parties of the obligation to supply a portion of the Bonnybridge (Eastern) Special Water Supply District situate above the level of supply by gravitation from the existing works of the trustees and which part is hatched blue on the signed plan herein-before referred to.

Ninth.—The second parties shall purchase from the first parties the mains and pipes of the first parties now used for the supply to Laurieston eastward from the point marked A on the aforesaid plan.

Tenth.—In the event of any disputes or differences arising at any time between the parties hereto with respect to the intent or meaning of this

A.D. 1900.

agreement or the due and adequate fulfilment thereof such disputes or differences shall be and are hereby submitted and referred to the decision of an arbiter to be agreed on or failing agreement to be appointed by the sheriff on the application of either of the parties whose decision shall be final In witness whereof these presents printed on this and the three preceding pages are together with the said plan subscribed by the parties hereto as follows viz. They are sealed with the common seal of the said water trustees and are subscribed by John Weir John Hendry Alexander Mitchell David Miller Robert Baird Robert Dobbie and Robert Hill Lochhead being a quorum of the said water trustees and by Andrew Balfour Gray the clerk to the said water trustees at Falkirk on the ninth day of April one thousand nine hundred before these witnesses James Russel Welsh Ferguson clerk and Alexander Roderick Fraser burgh officer both at the Burgh Buildings Falkirk They are subscribed on behalf of the said Eastern District Committee by Robert Hunter of Glenfuir Falkirk and David Mitchell of Millfield Polmont members of the said committee and by James Henry Burns solicitor Falkirk clerk to the said committee at Falkirk on the twelfth day of the said month of April and year last mentioned before these witnesses William Ballantine road surveyor Laurieston and David Steele Milne clerk to the said James Henry Burns And they are sealed with the common seal of the said county council and are subscribed on behalf of the said county council by Azariah Griffiths Drum Bonnybridge and John Stirling of Muiravonside Linlithgow members of the said county council and by Patrick Welsh writer Stirling county clerk at Falkirk on the twenty-seventh day of said month of April and year last mentioned before these witnesses John Christie McVail doctor of medicine medical officer of the county of Stirling and John Alexander Warren civil engineer 115 Wellington Street Glasgow.

J. R. W. FERGUSON witness.

A. R. FRASER witness.

JOHN C. McVAIL witness.

JOHN A. WARREN witness.

WILLIAM BALLANTINE witness.

D. S. MILNE witness.

JOHN WEIR trustee.

JOHN HENDRY trustee.

ALEX. MITCHELL trustee.

DAVID MILLER trustee.

ROBERT BAIRD trustee.

ROBERT DOBBIE trustee.

ROB. H. LOCHHEAD trustee.

A. BALFOUR GRAY clerk.

AZARIAH GRIFFITHS member of
county council.

JOHN STIRLING member of
county council.

PATRICK WELSH county clerk.

ROBERT HUNTER member of
Eastern Committee.

DAVID MITCHELL member of
Eastern Dist. Committee.

J. H. BURNS district clerk.

THE THIRD SCHEDULE.

A.D. 1900.

AGREEMENT between THE FALKIRK AND LARBERT WATER TRUSTEES incorporated under the Falkirk and District Water Act 1888 (herein-after called "the first parties"), on the first part and JOHN WILLIAM BURNS of Kilmahew in the County of Dumbarton herein-after called ("the second party") on the second part and Messrs. A. G. MOORE & COMPANY Coalmasters in Glasgow and ROBERT THOMAS MOORE and ALEXANDER GEORGE MOORE both Coalmasters in Glasgow the individual partners of the said Company (herein-after called "the third parties") on the third part.

WHEREAS the first parties who were incorporated under the Falkirk and District Water Act 1888 for the purpose of supplying water within the burgh of Falkirk and the adjacent districts are promoting in the present session of Parliament a Bill for the purpose of bringing into the said burgh and districts an additional supply of water:

And whereas it is proposed by the said Bill to authorise the construction of a reservoir (therein called Work No. 6) wholly situated in the parish of Denny and county of Stirling and in connection therewith of an embankment across the Little Denny Burn all as more particularly described in the Bill for the purpose of storing water for the better supply of water to the said burgh and districts:

And whereas the second party is owner or reputed owner and the third parties are lessees or reputed lessees of certain minerals under the lands to be acquired for the purpose of the construction of the said reservoir (Work No. 6) and they have lodged a petition against the Bill:

And whereas negotiations having taken place between the first parties and the second and third parties for the purpose of purchasing the said minerals underneath the site of the said reservoir and adjacent thereto so far as the same belong to the second and third parties for their several and respective interests therein it has been agreed that the second and third parties should sell and the first parties should purchase the said minerals on the terms and conditions hereafter mentioned and that the second and third parties should withdraw their petition against the Bill:

It is therefore hereby agreed between the first parties and the second and third parties as follows (that is to say):—

1. The second and third parties for their respective rights and interests as owners and as lessees shall sell and convey to the first parties and the first parties shall subject to the conditions herein-after mentioned purchase and acquire at the price herein-after mentioned all the seams of coal and any other minerals which the titles of the second party may instruct as belonging to him and which at the date hereof are unworked and all the minerals leased by the third parties lying under and within the area of the said reservoir (Work No. 6) so far as the said reservoir when full will be covered by water as delineated on

A.D. 1900.

the plans and sections deposited for the said Bill and also lying under and within a further area extending one hundred feet all round outside the said area to be covered with water and also extending one hundred feet round the ends of the embankment and one hundred feet round the tail of the outer slope of the embankment of the said reservoir but which minerals aforesaid so purchased shall not exceed in area fifty acres. A plan shall be prepared showing the said area within six months after the passing of the Act and shall thereafter be signed and docquetted and signed as relative hereto Any difference in regard thereto shall be decided by the arbiter.

2. The price to be paid by the first parties to the second and third parties for the said coal and other minerals as aforesaid and for all their respective rights and interests shall be four thousand five hundred pounds which sum shall subject to the provisions herein-after mentioned be payable to the second and third parties on the fifteenth day of May one thousand nine hundred and one which shall be the date of entry of the first parties and shall bear interest from that date at the rate of four per centum per annum until paid.
3. The second and third parties shall grant a valid and sufficient conveyance of their respective rights to the coal and other minerals as aforesaid so purchased with absolute warrandice Provided that in the event of its being found that the second party cannot give a valid title to the coal seams (with the exception of what is known as "craw coal") within any particular portion or portions of the said area of fifty acres aforesaid the second and third parties shall allow a deduction from the aforesaid price proportionate to the area or areas as to which the second party is not able to give a valid and sufficient conveyance of the coal seams within such portion or portions as aforesaid Provided also that the second party shall be bound to grant a conveyance to the minerals other than the seams of coal (exclusive of "craw coal") so far only as he has right thereto with warrandice from fact and deed only and no deduction from said price shall be made in respect of such other minerals and "craw coal".
4. The second and third parties and their successors shall be entitled to make working roads underground through the area aforesaid to enable them to work the coals which belong to them in so far as may in the opinion of the arbiter after-mentioned be necessary or convenient for working the coal in the adjoining lands which roads shall not in any case exceed the width of eight feet nor a height of eight feet and no such roads (if more than one should be formed) shall be placed nearer to one another throughout their whole length than forty yards but no such roads shall be made so as to injure any part of the said reservoir or embankment.
5. Before commencing to construct any such roads the second and third parties or either of them shall be bound to deliver to the first parties plans and sections showing the proposed roads In the event of the first parties failing to state any objections in writing within twenty-one days after delivery of said plans and sections the second and third

A.D. 1900

parties and their foresaids shall be at liberty to proceed with the works shown thereon. If any objection is stated by the first parties to such plans and sections or to the roads intended to be made as aforesaid or to the number of such roads the same shall failing agreement be settled by an arbiter as herein-after mentioned. Provided that no such road shall be made under the site of the embankment of the said reservoir if it should be proved to the satisfaction of the arbiter after mentioned that such road is likely to damage the said embankment.

6. The said roads shall in all cases be made and constructed at the sight and to the reasonable satisfaction of the arbiter after-mentioned and the first parties and their engineer shall have all reasonable access at any time to the workings for the purposes of inspection.
7. So far as the said roads shall be constructed at the sight and to the satisfaction or according to any decision of the arbiter after mentioned the second or third parties shall not be liable to the first parties for any damage done to the said reservoir or the embankment thereof other than damage due to the fault or negligence of the second or third parties nor shall the first parties be liable to the second or third parties for any loss or damage whatever occasioned to them by leakage of water or by any other cause other than damage due to the fault or negligence of the first parties.
8. The right of the second parties to work their own minerals outside the aforesaid area of fifty acres shall not subject to the conditions herein contained be prejudiced by this agreement.
9. In the event of any disputes or differences at any time arising between the first parties and the second and third parties with respect to the intent or meaning of this agreement or the due and adequate fulfilment thereof or with respect to any matter of difference arising under the same all such disputes or differences shall be and the same are hereby severally referred to the decision of an engineer to be agreed on or failing agreement to be appointed by the sheriff principal of the county of Stirling on the application of either of the parties and the decision of such arbiter shall on all points be final and binding on the said parties.
10. The second and third parties hereby agree to withdraw their opposition to the said Bill.

This agreement is made subject to the approval of Parliament and to the Bill being passed and to the first parties constructing the said reservoir and embankment (Work No. 6) and shall be scheduled to and confirmed by the Bill and made binding on the first second and third parties respectively. In witness whereof these presents printed on this and the three preceding pages are executed in duplicate by the parties as follows viz. They are subscribed by the said A. G. Moore & Co. (the signature of said firm being adhibited by the said Robert Thomas Moore) and by the said Robert Thomas Moore at London on the twentieth day of June one thousand nine hundred before these witnesses Walter Stuart Wilson and William Robertson Copland junior both Civil Engineers Glasgow and are sealed with the common seal of the said Falkirk and Larbert Water Trustees and are subscribed by John Weir Robert Baird David Miller Robert Dobbie Alexander Mitchell John Hendry

and Richard Whyte being a quorum of the said Trustees and by Andrew Balfour Gray clerk to the said Trustees and are subscribed by John Strachan Wright writer Glasgow for and on behalf of the said John William Burns and as specially authorised by him by ~~letter~~ of authority dated the eighteenth day of June one thousand nine hundred and are subscribed by the said Alexander George Moore all at London on the twenty-first day of June and year last mentioned before these witnesses William Robertson Copland civil engineer Glasgow and John Liddell clerk to Wright Johnston Mackenzie and Roxburgh writers Glasgow.

A.D. 1900.

WM. ROBERTSON COPLAND
witness.

JOHN LIDDELL witness.

W. S. WILSON witness.

W. R. COPLAND jr. witness.



JOHN WEIR trustee.

ROBERT BAIRD trustee.

DAVID MILLER trustee.

ROBERT DOBBIE trustee.

ALEXR. MITCHELL trustee.

JOHN HENDRY trustee.

RICHARD WHYTE trustee.

A. BALFOUR GRAY clerk.

JOHN S. WRIGHT as agent for
and as authorised by John
William Burns.

A. G. MOORE & Co.

ROBT. THOS. MOORE.

ALEX. GEORGE MOORE.

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1904

The Department of the Interior has the honor to acknowledge the receipt of your letter of the 10th inst. in relation to the matter of the proposed extension of the public lands in the State of California. The Department is currently engaged in a study of the subject and will endeavor to give you a prompt reply.

Very respectfully,
Secretary of the Interior

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